

TENTATIVE RULINGS**9/10/2026****02:00 PM**

100	Burns vs. Power Paragon, Inc. 2021-01197621	Final Accounting The court finds all settlement distribution efforts are fully concluded. The administrator's final report (ROA 164) is thus approved, and the court's file is closed. Plaintiff to give notice of the court's ruling, including to the LWDA, within five (5) calendar days, and file proof of service.
101	Hsieh vs. Christ Church By The Sea 2025-01530561	1. Demurrer to Cross-Complaint 2. Motion to Strike Cross-Complaint 1. Demurrer Plaintiffs and Cross-Defendants Denise Hsieh, Cera Norton, Merrick Chepo, Laura Ingersoll, Sean Jarne, Jen Swisher, Kaylee Mason, Meghan Meek, Megan Gill, Nicci Dewez, Amanda Padilla, Sean Finegan, Shai Reynolds, Monica Stasiak, Nicole Oudyk, and Ben Hogan's (collectively, "plaintiffs") unopposed Demurrer to the Second Cause of Action for Defamation in the Cross-Complaint ("XC") of Defendants and Cross-Complainants Christ Church by the Sea and Christ Church by the Sea Children's Center (collectively, "defendants") is OVERRULED . <u>Procedural Issue</u> Per C.C.P. § 430.41(a)(3), the "demurring party shall file and serve with the demurrer a declaration" concerning the parties' meet and confer efforts. Plaintiffs have failed to file any such declaration. <u>Legal Authority</u> In evaluating a demurrer, the court is guided by long-settled rules. The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." Serrano v. Priest (1971) 5 Cal.3d 584, 591. "The complaint must be construed liberally by drawing reasonable inferences from the facts pleaded." Rodas v. Spiegel (2001) 87 Cal.App.4th 513, 517. "Further, [the Court] gives the complaint a reasonable interpretation, reading it as a whole and its parts in their context." Blank v. Kirwan (1985) 39 Cal.3d 311, 318. "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.

Merits

Plaintiffs demur to the XC's Second Cause of Action for Defamation. "The elements of a defamation claim are (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage. The defamatory statement must specifically refer to, or be of or concerning, the plaintiff." Jackson v. Mayweather (2017) 10 Cal.App.5th 1240, 1259–1260.

Plaintiffs argue the claim must be plead "with specificity" and the XC is therefore insufficient because it "fails to identify any specific defamatory statement." ROA 28 at 3. This argument lacks merit. The authority cited by plaintiff, Ellenberger v. Espinosa (1994) held that a claim for defamation was "defective because it does not allege either the specific words or the substance of the statements ... but instead merely alleges the conclusions of the pleader that statements were made which 'intimated and suggested' that plaintiff had done certain wrongful things." 30 Cal.App.4th 943, 951. Here, cross-complainant has alleged that "that, sometime beginning on September 2, 2025 and continuing thereafter, Cross-Defendants, and each of them perpetuated false, malicious, and defamatory statements, orally and verbally, that: (1) there was mold at Cross-Complainant, Christ Church by the Sea Children's Center, and (2) that the Pastor at Cross-Complainant, Christ Church by the Sea, had engaged in sexual misconduct." ROA 23 ¶ 14. Moving parties do not explain why these allegations do not qualify as "substance" pursuant to the very authority they cite. The court finds the allegations sufficient at this stage and factual details are properly the subject of discovery.

Plaintiffs also argue that cross-complainants must plead "specific" or "special damages" because the defamatory character of the statements are not apparent on their face. ROA 28 at 4. This argument also lacks merit. The alleged statements do not require further context to be understood as defamatory, i.e., "(1) there was mold at Cross-Complainant, Christ Church by the Sea Children's Center, and (2) that the Pastor at Cross-Complainant, Christ Church by the Sea, had engaged in sexual misconduct." ROA 23 ¶ 14. Cross-Complainants therefore need not plead special damages. McGarry v. University of San Diego (2007) 154 Cal.App.4th 97, 112 (Statements are libelous per se if the listener could understand the defamatory meaning without the necessity of knowing extrinsic explanatory matter.); Wong v. Jing (2010) 189 Cal.App.4th 1354, 1369–1370 (defamatory per se statements do not require pleading and proof of special damages); 5 Witkin, Summary of Cal. Law (11th ed. 2023) Torts, § 640 ("It is not necessary that the publication charge the commission of a crime; it is sufficient if it so reflects on the person's integrity as to bring him or her into disrepute."). A statement a persona engaged in sexual misconduct undoubtedly "reflects on person's integrity." The court therefore finds the allegations sufficient at this stage.

Plaintiffs also demur on the basis of uncertainty. There is no merit to this argument. The court will only sustain a demurrer for uncertainty if it is so poorly drafted the other party cannot reasonably respond. Khoury v.

Maly's of California Inc. (1993) 14 Cal.App.4th 612, 616. The second cause of action is not so uncertain that plaintiffs cannot respond.

The court finds the allegations sufficient at the pleading stage and the demurrer as to the Second Cause of Action for Defamation is OVERRULED on that basis.

2. Motion to Strike

Plaintiffs and Cross-Defendants Denise Hsieh, Cera Norton, Merrick Chepo, Laura Ingersoll, Sean Jarne, Jen Swisher, Kaylee Mason, Meghan Meek, Megan Gill, Nicci Dewez, Amanda Padilla, Sean Finegan, Shai Reynolds, Monica Stasiak, Nicole Oudyk, and Ben Hogan's (collectively, "plaintiffs") unopposed Motion to Strike portions of the Cross-Complainant by Christ Church by the Sea and Christ Church by the Sea Children's Center (collectively, "defendants") is DENIED.

Procedural Issue

Per C.C.P. § 435.5 (a)(3), the "moving party shall file and serve with the motion to strike a declaration" concerning the parties' meet and confer efforts. Plaintiffs have failed to file any such declaration.

Legal Authority

A court may strike any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. § 436. "Irrelevant" matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. Code Civ. Proc. § 431.10(b). A motion to strike can also strike legal conclusions. Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:179 (2010). Conclusory allegations are permitted, however, if they are supported by other factual allegations in the complaint. Perkins v. Superior Court (1981) 117 Cal.App.3d 1, 6.. The grounds for a motion to strike must appear on the face of the pleading or from matters which the court may judicially notice. Code Civ. Proc. § 437.

The use of the motion must be "cautious and sparing" and is not intended to be used as a "procedural 'line item veto' for the civil defendant." PH II, Inc. v. Super. Ct. (1995) 33 Cal.App.4th 1680, 1682-83. Pleadings are to be construed liberally with a view to substantial justice. Code Civ. Proc. § 452; Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:197 (2010). The allegations of the complaint are presumed true; they are read as a whole and in context. Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255. The same liberal policy regarding amendments that applies to the sustaining of demurrers applies for motions to strike. If a defect may be correctible, leave to amend should usually be given. Id. at 168.

Merits

A. Agency Allegations

Plaintiffs argue the agency allegations (ROA 23 ¶ 5) should be stricken because they are not supported by facts and are untrue. ROA 26. As an initial matter, the court accepts all allegations as true at this stage. Additionally, plaintiffs' cited authority has no bearing on the sufficiency of agency allegations. Id. at 3-4. Plaintiff cites *Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63-64 then states "[i]n *Turner* (sic), the court held that the plaintiff did not state facts sufficient to support malice or oppression or fraud in connection with her discrimination claim." Id. The case is miscited and does not support striking the allegations. The allegations are sufficient at this stage. See, e.g., *Skopp v. Weaver* (1976) 16 Cal. 3d 432, 439 (holding "an allegation of agency as such is a statement of ultimate fact. Consequently further allegations explaining how this fact of agency originated become unnecessary.").

B. Prayer for Punitive Damages

Plaintiffs argue the punitive damages in the prayer should be stricken because it is unsupported by specific facts. ROA 26 at 4-5. As an initial matter, the prayer for punitive damages is not based solely on the defamation claim. ROA 23. In other words, even accepting plaintiffs' argument that the defamation claim as alleged cannot support punitive damages, there is insufficient basis to strike it given punitive damages are also sought for cause of action nos. 1, 3, and 4 and plaintiffs have not challenged any aspect of those claims.

C. Punitive Damages Allegations

Plaintiffs also argue paragraph 19 of the XC should be stricken because specific factual allegations are lacking. The court does not agree.

Pursuant to Civil Code section 3294(a), "[i]n an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." Civ. Code § 3294(a). Civil Code section 3294(c)(1) defines "malice" as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." Similarly, "oppression" is defined as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." Civ. Code § 3294(c)(2).

Plaintiffs assert there are no allegations demonstrating they acted with malice, oppression, or fraud and that the "conclusory" allegation plaintiffs acted with malice is insufficient. ROA 26 at 4-5. This argument depends on an inaccurate characterization of the allegations in XC paragraph 19

		and the court rejects it. As stated above, the XC alleges that, beginning around 09-02-2025, plaintiffs stated “(1) there was mold at Cross-Complainant, Christ Church by the Sea Children’s Center, and (2) that the Pastor at Cross-Complainant, Christ Church by the Sea, had engaged in sexual misconduct.” ROA 23 ¶ 14. The allegations further state that “the conduct of Cross-Defendants, Hillary Jade Cortese and Hillary Pedersen, described herein above, was intended by those Cross-Defendants to cause injury to Cross-Complainants and was despicable conduct carried out by said Cross-Defendants with a willful and conscious disregard of the rights of Cross-Complainants, subjecting Cross-Complainants to cruel and unjust hardship in conscious disregard of Cross-Complainants’ rights such as to constitute malice, oppression or fraud...” Id. ¶ 19. At the pleading stage, the complaint may rely on, as here, ultimate facts of oppression or malice. See Spinks v. Equity Residential Briarwood Apartments (2009) 171 Cal.App.4th 1004, 1055. The court finds the allegations sufficient to survive the motion to strike and on that basis, it is DENIED.
102	Guenther vs. Qazi Cosmetic Clinic 2025-01502198	1. Motion to Compel Arbitration 2. Case Management Conference Defendant Qazi Cosmetic Clinic’s unopposed Motion to Compel Arbitration is GRANTED. In fact, the parties recently submitted a stipulation and proposed order to that effect. The Court has signed the order. The parties left open the question of whether a stay of the representative PAGA claims was appropriate, pending arbitration of Plaintiff’s individual claims. The Court concludes a stay is appropriate. Accordingly, plaintiff is ordered to arbitrate her individual claims against defendant, including her individual PAGA claim. Plaintiff’s representative PAGA claim is stayed, along with the remainder of the action, pending the outcome of the arbitration. See 9 U.S.C. § 3; Cal. Civ. Proc. Code § 1281.4; Viking River Cruises, Inc. v. Moriana (2022) 142 S. Ct. 1906, 1919; Adolph v. Uber Technologies, Inc. (2023) 14 Cal. 5th 1104, 1125. An ADR Review hearing is scheduled for August 19, 2027, at 9:30AM in Department CX102. The parties are ordered to file a joint status conference report at least 10 court days prior to the hearing. Defendant to give notice.